

**SPECIALLY APPEARING DEFENDANT CHRIS MALAN’S MOTION TO QUASH
SERVICE OF SUMMONS**

TENTATIVE RULING: The motion is DENIED. Defendant is granted 15 days’ leave to respond to the Complaint. (Code Civ. Proc., § 418.10, subd. (b).)

Specially appearing Defendant Chris Malan (“Defendant”) moves, pursuant to Code of Civil Procedure section 418.10,² to quash service of summons on the ground that service has not been completed in compliance with California statutory requirements and the Court therefore lacks personal jurisdiction.

Defendant does not dispute that she is a proper party to this action in her capacity as an individual, successor in interest to Jack Malan, and as successor trustee of the Malan Family Trust. She contends that service on her, in all capacities, is defective. Defendant argues that the summons and complaint were served on her adult son at the property address, but that substituted service is not complete because Defendant has not yet received a copy of the summons and complaint by mail at the residence where the documents were left. (Mem., 4:24-27, citing § 415.20, subd. (b).)

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.” (§ 415.10.) “A summons may be served on a person ... by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process.” (§ 416.90.) Stated differently, if the person to be served authorizes another person to receive service of process on his/her behalf, then personal service of a summons and complaint on that authorized person is deemed personal service on the actual person to be served. (§§ 415.10, 416.90.) Such service is not a form of substituted service under section 415.20.

The authorization to receive service of process under section 416.90 can be by law or by appointment. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389.) A specific appointment is not required; the authority of the agent to receive service of process may be inferred or implied, but the principal-agent relationship must be sufficiently close and enduring to make it highly probable the person to be served will receive actual notice. (*Warner Bros. Records, Inc. v. Golden West Music Sales* (1974) 36 Cal.App.3d 1012, 1017.)

Although there is no opposition by Plaintiff on file, the filing of a proof of service declaration ordinarily creates a rebuttable presumption that the service was proper. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1163.)

The Proofs of Service (“POS”) demonstrate that a “Mica Malan, authorized to accept service of process” was personally served. (5/18/26 and 5/26/26 POSes.) Both POSes delineate the service as “personal service” on Defendant, and not as substituted service. (*Ibid.*) Neither POS indicates that any papers were mailed to Defendant at the address at which her son was

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

served—a requirement for substituted service. (*Id.*) Moreover, the amended POS states that Mica Malan was “served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made).” (5/26/26 POS.)

The Court finds that the POSes here give rise to a presumption that Mr. Malan was duly served as Defendant’s agent for service of process. Despite the initial POS being filed on May 18, 2026 (prior to the filing of Defendant’s motion) and the amended POS being filed May 26, 2026 (prior to the deadline for Plaintiff to oppose the motion), Defendant provides no evidence and submits no Reply contesting the fact set out in the POSes that Mr. Malan was authorized to accept service of process on her behalf and therefore showing that Defendant was personally served under sections 415.10 and 416.90.

Based on the foregoing, the Motion is DENIED.

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JPMorgan Chase Bank, N.A. v. Robert Vega

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MOTION TO SET ASIDE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE

TENTATIVE RULING: Good cause appearing, and no opposition being on file, the motion is GRANTED.